

Food Hygiene and Quality Act, 2024

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 20

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Food Hygiene and Quality Act, 2081."

(2) This Act shall commence on the ninety-first day after the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "License" means a food business license pursuant to Section 9.

(b) "Office" means an office under the Department.

(c) "Food Inspection Officer" means a food inspection officer pursuant to Section 28.

(d) "Foodstuff" means unprocessed, semi-processed, or processed food or drink generally consumed by humans, nutrients used therein, food additives, or spices, and the term also includes dietary supplement foods, packaged processed drinking water, alcoholic beverages, chewing gum, and bubblegum.

(e) "Food Additive" means an approved edible substance used as an agent during the production, processing, and preservation of foodstuff in accordance with prescribed standards to maintain or enhance the color, aroma, taste, and achieve other desired qualities of the foodstuff, which is not directly consumed as food.

(f) "Food Business" means the act of producing, processing, preparing, packaging, storing, selling, distributing, exporting, or importing foodstuffs for commercial or public purposes, and the term also includes the act of selling or distributing foodstuffs by operating from a fixed place or building, or by moving on the street, or through online means using an electronic system, after producing, processing, preparing, or packaging them.

(g) "Food Business Operator" means a person engaged in a food business.

(h) "Food Hygiene" means the condition of being safe from a human health perspective during the preparation and intended use of foodstuffs.

(i) "Food Hygiene Management System" means Good Manufacturing Practices, Good Hygienic Practices, Hazard Analysis and Critical Control Point system necessary for maintaining food hygiene in a food business, and the term also includes other such practices prescribed for food hygiene management in a food business.

(j) "Food Chain" means the chain of service provision related to the production, processing, storage, transportation, sale, or distribution of foodstuffs using any goods, resources, means, or activities in a coordinated manner to deliver foodstuffs to consumers.

(k) "Quality" means the characteristic properties, standards, quantity, scope, and level of hygiene prescribed for a foodstuff.

- (l) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
- (m) "Traceability" means the system of records tracing the sequence of the condition of a foodstuff through the stages of its production, processing, storage, export, import, and sale or distribution.
- (n) "Packaging" means the act of filling, wrapping, capping, placing, or covering a foodstuff in any container, can, bottle, carton, box, cage, bag, film, plastic, or other such material.
- (o) "Processing Aid" means a substance, other than mechanical equipment, used to facilitate a technical purpose, such as food processing or treatment, which is not directly used as a food ingredient.
- (p) "Ministry" means the Ministry of Agriculture and Livestock Development, Government of Nepal.
- (q) "Director General" means the Director General of the Department.
- (r) "Label" means any information or details such as a barcode, QR code, tag, mark, picture, or other such sign or details affixed, written, printed, lithographed, marked, engraved, embossed, included, or placed in any other manner on the packaging, packet, or container covering of a packaged foodstuff.
- (s) "Department" means the Department of Food Technology and Quality Control.
- (t) "Committee" means the Food Hygiene and Quality Recommendation Committee pursuant to Section 5.
- (u) "Ingredient" means items such as foodstuffs, nutrients, food additives, and spices used as raw materials in the production or preparation of a foodstuff.
- (v) "Local Level" means a Rural Municipality or Municipality.
- (w) "Service Provider" means a hotel, motel, lodge, restaurant, resort, or bar, and the term also includes a person providing food business services under any other name such as catering, canteen, diner, sweet shop, tea shop, or eatery that provides food or drink services.

4. Regulation of Hygiene and Quality: (1) The Government of Nepal shall regulate or cause to be regulated food hygiene and quality.

(2) The Provincial Government within its province and the Local Level within its area shall regulate or cause to be regulated food hygiene and quality. 5. Food Hygiene and Quality Recommendation Committee: (1) There shall be a Food Hygiene and Quality Recommendation Committee as follows to submit recommendations, opinions, and suggestions to the Government of Nepal for the determination of the hygiene and quality of foodstuffs:-

- (a) Secretary, Ministry - Chairperson
- (b) Joint Secretary, Ministry of Industry, Commerce and Supplies, Government of Nepal - Member
- (c) Joint Secretary, Ministry of Health and Population, Government of Nepal - Member
- (d) Chief of the Division looking after food technology related subjects in the Ministry - Member
- (e) Joint Secretary, Ministry of Forests and Environment - Member
- (f) Representative, Federation of Nepalese Chambers of Commerce and Industry - Member
- (g) Three persons, including at least two women, nominated by the Ministry from among persons who have obtained at least a Master's degree or equivalent qualification in Food Technology, Food Nutrition, or Food Hygiene related subjects and have worked for at least five years in the field of food hygiene and quality - Member
- (h) One representative of an association or organization working in the field of consumer rights protection,

nominated by the Ministry - Member

(i) Two persons, including at least one woman, nominated by the Ministry to represent professional associations or organizations of food scientists or technologists - Member

(j) One expert designated by the Ministry from the Nepal Agricultural Research Council who looks after food related subjects - Member

(k) One expert of at least Associate Professor level from a university teaching food science and technology related subjects, designated by the Ministry - Member

(l) Director General, Department - Member Secretary

(2) The term of office of nominated members pursuant to clauses (g), (h), and (i) of sub-section (1) shall be three years, and they may be re-nominated for one further term.

(3) Notwithstanding anything contained in sub-section (2), if a member nominated pursuant to clauses (g), (h), and (i) of sub-section (1) commits any act against food hygiene and quality or contrary to this Act, the Ministry may remove such member from office at any time.

(4) Before removal from office pursuant to sub-section (3), the concerned member shall be given a reasonable opportunity to submit a defense.

(5) While nominating members pursuant to clauses (g), (h), and (i) of sub-section (1), it shall be done on the basis of the principle of inclusiveness.

(6) The Secretariat of the Committee shall be located at the Department. 6.

7. Functions, Duties, and Powers of the Committee: (1) The functions, duties, and powers of the Committee shall be as follows:-

(a) to recommend to the Government of Nepal for the determination of the hygiene and quality of foodstuffs and the determination of the food hygiene management system,

(b) to recommend to the Government of Nepal for the formulation of policies relating to food hygiene and quality,

(c) to coordinate and facilitate among the Government of Nepal, Provincial Government, and Local Level to maintain hygiene and quality in the food business,

(d) to issue directions to concerned stakeholders for the determination of the hygiene and quality of foodstuffs and the adoption of the food hygiene management system,

(e) to make necessary coordination and facilitation for the development of human resources needed in the field of food hygiene and quality,

(f) to form sub-committees as needed to assist in the work of the Committee,

(g) to hear and manage or cause to be managed complaints of food business operators, customers, and other stakeholders, and

(h) to classify foodstuffs into different groups or sub-groups.

(2) While recommending to the Government of Nepal regarding the determination of the hygiene and quality of foodstuffs, the Committee shall do so on the following bases:-

(a) natural and specific properties of the foodstuff,

(b) scientific facts and basis of the concerned foodstuff,

(c) international and regional recognition and standards relating to the hygiene and quality of foodstuffs,

(d) ingredients and nutrients used in the foodstuff,

(e) potential adverse effects or impacts on human health from the foodstuff, and
(f) relevant aspects and bases to be adopted concerning food hygiene and quality. Chapter-3
Recommendation for Food Business Registration and License

8.

Requirement to Obtain Recommendation: (1) A person wishing to establish an industry of prescribed types for the production, processing, packaging, and storage of foodstuffs shall obtain a recommendation from the Department or an office designated by the Department before registering such industry. (2) A person wishing to establish an industry for the production, processing, packaging, and storage of foodstuffs, registered with the industry registering body of the Provincial Government pursuant to Provincial law, shall obtain a recommendation from the office or body designated by the Provincial Government to perform food hygiene related work. (3) Until the Provincial Government designates an office or body to perform food hygiene related work pursuant to sub-section (2), a recommendation for the establishment of industries under that sub-section shall be obtained from the Department or an office designated by the Department pursuant to sub-section (1). (4) A person wishing to obtain a recommendation pursuant to sub-section (1) or (2) shall submit an application to the Department, concerned office, or body, attaching the following documents and details:- (a) a letter from the industry registering body requesting a recommendation, (b) the capital, type, and capacity of the industry, and (c) a technical proposal relating to the process for maintaining the food hygiene and quality of the foodstuff intended to be produced and processed, and details of manpower related thereto. (5) Upon examining the documents and details received pursuant to sub-section (4), if it appears that the applicant can maintain the hygiene and quality of the foodstuff intended to be produced, processed, packaged, and stored, the Department, concerned office, or body shall, upon collecting a fee, issue a recommendation for the registration of the industry. 9. Requirement to Obtain License: (1) No person shall operate a food business without obtaining a license under this Act.

Provided that it shall not be mandatory to obtain a license under this Act to operate food businesses of prescribed types. (2) For obtaining a license, the following food business operators shall submit an application to the following authority:- (a) For operating a food business or providing services under any other name such as wholesale or retail trading of foodstuffs, street vending, hotel, motel, restaurant, food court, food park, eatery, catering, diner, homestay, or other food businesses required to be registered at the Local Level pursuant to prevailing law - the Chief of the concerned Local Level or an officer designated by him/her, and (b) For businesses relating to the export or import of foodstuffs or other food businesses, other than those mentioned in clause (a), required to obtain a license - the Director General or the head of the Office. (3) The application submitted pursuant to sub-section (2) shall have the following details and documents attached:- (a) a copy of the certificate of registration of the food business, (b) details and annual quantity of the foodstuffs to be produced, processed, packaged, and stored, (c) detailed information relating to the technology and methods to be adopted to maintain hygiene and quality in the production, processing, packaging, and storage of foodstuffs, and (d) the address and contact number of the place of the food business and details of key persons involved in its management. (4) For operating a food business under clause (a) of sub-section (2), a separate license shall be obtained for each Local Level. (5) Upon examining the application received pursuant to sub-section (2), including through site inspection and laboratory testing, if the officer authorized to issue the license finds it appropriate to grant a license to the applicant to operate the food business, he/she shall, specifying the conditions to be complied with while operating the food business and collecting a fee, provide the license within thirty days. 10.

11. Suspension and Revocation of License: (1) In the following circumstances, the officer authorized to issue

the license may suspend the license for the period specified as follows:-

- (a) If, during monitoring, inspection, inquiry, or surprise inspection under this Act, an order was given to maintain food hygiene and quality, and such arrangement is not made within the period specified in such order - until such arrangement is made,
- (b) If a written request for suspension of the license is received from an authorized officer or body pursuant to prevailing law - for a maximum period of three months,
- (c) If the minimum standard relating to food hygiene and quality required to be maintained pursuant to this Act and the regulations made under this Act is found not to have been maintained - until such standard is maintained, or
- (d) If the license is not renewed pursuant to Section 10 - for the period until such renewal is made.

(2) Before suspending the license of a food business operator pursuant to sub-section (1), he/she shall be given a period of thirty days to make arrangements for maintaining food hygiene and quality required to be maintained pursuant to this Act and the regulations made under this Act, or to get the license renewed.

(3) If, within the period given pursuant to sub-section (2), the food business operator fails to make the minimum arrangements relating to food hygiene and quality required to be maintained pursuant to this Act and the regulations made under this Act, or fails to submit an application for renewal of the license, the officer authorized to issue the license shall suspend the license of such food business operator pursuant to sub-section (1).

(4) Upon suspension of the license pursuant to sub-section (3), the food business operator shall not be entitled to operate the food business under the license during such period.

(5) A food business operator whose license has been suspended pursuant to sub-section (3) shall make the minimum arrangements relating to food hygiene and quality required to be maintained pursuant to this Act and the regulations made under this Act, and submit an application to the officer authorized to issue the license for the revocation of the suspension of the license.

(6) Upon receipt of an application pursuant to sub-section (5), the officer authorized to issue the license shall, after conducting necessary inspection and examination, revoke the suspension of the license if it is found that the applicant has made the minimum arrangements for food hygiene and quality required to be maintained pursuant to this Act and the regulations made under this Act.

(7) Notwithstanding anything contained in sub-section (6), if the license is suspended pursuant to clause (d) of sub-section (1), after the period allowed for getting such license renewed has elapsed, the officer who suspended the license may renew and regularize such license and revoke the suspension upon collecting a fee equivalent to five times the fee applicable pursuant to sub-section (3) of Section 10.

12. Circumstances for Revocation of License: An officer authorized to issue a license may revoke the license of the concerned food business operator in the following circumstances:-

(a) if the food business operator submits an application for the revocation of the license obtained by him/her, or

(b) if the registration of the food business is not maintained or is revoked pursuant to prevailing law.

13. Requirement to Obtain Approval: (1) A food business operator wishing to import foodstuffs shall obtain approval from the Department or an office designated by the Department before importing the foodstuffs.

(2) Foodstuffs brought to the port of entry for import after obtaining approval pursuant to sub-section (1) shall

require an entry permit from the Department or an office designated by the Department before being imported into Nepal.

(3) The period within which the import of foodstuffs must be completed after obtaining approval pursuant to sub-section (1), the format of the approval, and other procedures related thereto shall be as prescribed. 14. Quality Certification for Export: (1) If a food business operator wishes to certify whether a foodstuff intended for export meets the quality standards of the importing country, he/she may obtain certification from the Department or an office designated by the Department.

(2) The fee chargeable for quality certification of foodstuffs pursuant to sub-section (1) and other procedures relating to certification shall be as prescribed. Chapter-4

Prohibited Acts Relating to Foodstuffs

15. Prohibition on Sale and Distribution of Adulterated Foodstuffs: No person shall produce, process, export, import, store, transport, keep for sale or distribution, or sell or distribute, or cause to be sold or distributed, any foodstuff for human consumption that is in an adulterated condition as described in any of the following clauses:-

- (a) Rotten, decomposed, mixed with filth, or kept or prepared in a toxic condition,
- (b) Made, in whole or in part, from any diseased or disease-causing animal, bird, or harmful plant, making it unfit for human consumption,
- (c) Contains disease-causing microorganisms or harmful elements or chemicals injurious to human health in quantities exceeding the prescribed maximum limit,
- (d) Contains endogenous or exogenous chemicals, pesticide residues, veterinary drug residues, or microbial toxins at any stage of the food chain exceeding the prescribed maximum limit,
- (e) Uses natural or artificial toxic substances, hormones, or psychotropic chemicals,
- (f) Contains radiation exceeding the prescribed maximum limit that may cause immediate or long-term effects,
- (g) Contains any item or substance, directly or indirectly, whose use in foodstuffs is prohibited under this Act or prevailing law. 16.

Prohibition on Sale and Distribution of Substandard Foodstuffs: No person shall produce, process, export, import, store, transport, keep for sale or distribution, or sell or distribute, or cause to be sold or distributed, any substandard foodstuff as described in the following clauses:- (a) Foodstuffs, other than those covered by Section 15, that do not conform to the hygiene and quality standards determined under this Act, or (b) Foodstuffs in which the quantity of a principal constituent has been reduced, or any other substance has been mixed, making it inferior to the natural quality of that foodstuff. Provided that, in the case of a foodstuff comprising a mixture of more than one item, if the name and quantity of such mixed ingredients are clearly stated on the mixed foodstuff and such mixed foodstuff is clean and of good quality, it shall not be deemed an obstruction to produce, process, export, import, store, transport, and sell or distribute such substance. 17.

Prohibition on Deceptive Sale and Distribution of Foodstuffs: No person shall produce, process, export, import, store, transport, keep for sale or distribution, or sell or distribute, or cause to be sold or distributed, any foodstuff by deceiving or misleading through any of the following acts:- (a) Deceiving or misleading by representing one foodstuff as another, (b) Providing false information or making misleading claims regarding the ingredients or claims used in a foodstuff, (c) Deceiving or misleading by representing a lower quality foodstuff as a higher quality foodstuff, (d) Deceiving or misleading by adulterating a high-quality foodstuff with a non-food substance or a lower quality foodstuff, representing it as the high-quality foodstuff, or (e)

Presenting any written material, statement, mark, design, or other details used on the label of a packaged foodstuff in a false or misleading manner. 18. Prohibition on Excessive Use: Food additives and processing aids shall not be used or caused to be used in any foodstuff in quantities exceeding the prescribed limit. 19.

Prohibition on Production and Sale Without Label: (1) Packaged foodstuffs shall not be produced, sold, or distributed, or caused to be produced, sold, or distributed, without affixing a label. (2) The label of a packaged foodstuff must mention the following details:- (a) Name of the foodstuff, name and address of the manufacturer, (b) Ingredients of the foodstuff, (c) Weight or volume of the product, selling price, batch number, and date of manufacture, (d) If the product must be consumed within a certain period, such period, (e) Use of warning messages, pictures, or signs on the label of foodstuffs that may harm the health of consumers in specific conditions, and (f) Details regarding the nutritional content of prescribed foodstuffs. (3) The details required to be mentioned on the label pursuant to sub-section (2) shall be written in the Nepali or English language by the manufacturer and processor for foodstuffs produced within Nepal, and by the exporter or importer for foodstuffs to be exported or imported, in a manner understandable to the general public. Such details may also be written in any other language in addition to Nepali or English. (4) While choosing the language to be written on the label pursuant to sub-section (3) for foodstuffs produced and processed within Nepal and sold and distributed in the Nepali market, the Nepali language shall be given priority. (5) Foodstuffs without labels affixed as per sub-section (3) shall not be imported into or sold or distributed in Nepal. (6) Notwithstanding anything contained in sub-section (2), it shall not be necessary to mention the details mentioned in this section while selling and distributing foodstuffs sold and distributed in open form, such as vegetables and fruits. Provided that labels must be affixed to the packaging of imported vegetables and fruits. Chapter-5 Responsibilities of Food Business Operators 20.

Responsibilities of Producers, Processors, and Packers: In addition to the responsibilities required to be fulfilled pursuant to prevailing law while producing, processing, or packaging foodstuffs, the producer, processor, and packer of foodstuffs shall also fulfill the following responsibilities:- (a) Ensure that the foodstuff is not adulterated or substandard as per Section 15 or 16, (b) Adopt a food hygiene and management system while producing, processing, and packaging foodstuffs, (c) Keep the place and premises for producing, processing, and packaging foodstuffs clean, (d) Provide details relating to production, processing, and packaging requested by the Department, Office, or Food Inspection Officer in a timely manner, (e) Not engage workers suffering from communicable or infectious diseases in the work of food production, processing, and packaging until such disease is cured, (f) Not produce, process, or package, or cause to be produced, processed, or packaged, foodstuffs prohibited by the Department, Office, or Food Inspection Officer for a specified period, (g) Make arrangements for the prescribed experts or technical manpower to maintain food hygiene and quality, and (h) Maintain Traceability. 21. Responsibilities of Importers: In addition to the responsibilities required to be fulfilled pursuant to prevailing law, the importer of foodstuffs shall also fulfill the following responsibilities:- (a) Import foodstuffs only after obtaining approval from the Department or an office designated by the Department before importing the foodstuffs, (b) Ensure entry of foodstuffs arriving at the port of entry only after the Department or an office designated by the Department tests them and issues an entry permit, (c) Provide details of the foodstuffs requested by the Department, Office, or Food Inspection Officer, and (d) Maintain Traceability. 22. Responsibilities of Transporters: In addition to the responsibilities required to be fulfilled pursuant to prevailing law, the transporter of foodstuffs shall also fulfill the following responsibilities:- (a) Transport foodstuffs requiring special arrangements, such as milk, fish, meat, using means of transport that conform to the prescribed standards, (b) Transport only using clean, hygienic, undamaged, and well-maintained means of transport, (c) Not transport foodstuffs together with non-food items, (d) Transport within the stipulated period according to the nature of the foodstuff being

transported, and (e) Adopt hygiene, quality, and safety measures for the foodstuff during transportation. 23.

Responsibilities of Storers: In addition to the responsibilities required to be fulfilled pursuant to prevailing law, the storer of foodstuffs shall also fulfill the following responsibilities:- (a) Store foodstuffs in a manner that does not deteriorate their quality, (b) Keep the place and storage for storing foodstuffs clean, hygienic, and safe, (c) Store foodstuffs by arranging for humidity and temperature as prescribed according to the nature of the foodstuff, (d) Not engage in any act that may deteriorate the hygiene and quality of the foodstuff, (e) Not make any alterations to the details on the label of the foodstuff, and (f) Maintain Traceability. 24.

Responsibilities of Sellers: In addition to the responsibilities required to be fulfilled pursuant to prevailing law, the seller of foodstuffs shall also fulfill the following responsibilities:- (a) Arrange for an appropriate sales room according to the nature of the foodstuff so that its quality does not deteriorate, (b) Sell and distribute foodstuffs in a manner that conforms to the prescribed standards, (c) Arrange for the required humidity and temperature as prescribed in the showcase or sales room according to the nature of the foodstuff, (d) Not sell or distribute foodstuffs that require a label but lack one, or whose expiry date has passed, and (e) Maintain Traceability. 25.

Responsibilities of Service Providers: In addition to the responsibilities required to be fulfilled pursuant to prevailing law, the service provider shall also fulfill the following responsibilities:- (a) Provide foodstuffs that conform to the prescribed standards, (b) Arrange for the required humidity and temperature as prescribed in the sales showcase or room according to the nature of the foodstuff, (c) Keep the place and premises for preparing and distributing foodstuffs clean and hygienic, and (d) Maintain Traceability. Chapter-6 Department and Laboratory 26.

Functions, Duties, and Powers of the Department: In relation to regulating or causing to be regulated food hygiene and quality, the functions, duties, and powers of the Department shall be as follows:- (a) Regulate hygiene and quality at all stages of the food chain, (b) Develop a food hygiene management system and determine standards relating to foodstuffs, including dietary supplements, nutraceuticals, and proprietary foods, (c) Monitor whether food businesses required to obtain a license under this Act have obtained such license and are operating accordingly, (d) Monitor or cause to be monitored and inspected throughout Nepal by the Government of Nepal, and within their respective areas by the Provincial Government or Local Level, regarding whether anyone has sold or distributed, or caused to be sold or distributed, substandard foodstuffs, adulterated foodstuffs under Section 15, or foodstuffs by deceiving or misleading, or whether a food laboratory meets the standards under this Act, (e) Develop a system for risk assessment, management, communication, and regulation related to food hygiene, (f) Develop and manage a mechanism for foodborne disease surveillance in coordination with other concerned bodies, (g) Provide assistance and facilitation for food business inspection and monitoring conducted by the Provincial Government and Local Level, (h) Classify and grade food businesses through various logos and stickers based on the hygiene and quality of foodstuffs, (i) Conduct study, research, and development in food technology and food nutrition, (j) Enhance public awareness and provide training on food hygiene, quality, and nutrition, (k) Act as the contact point for international organizations related to food hygiene and quality, including the Codex Alimentarius Commission, and as the Sanitary and Phytosanitary (SPS) Inquiry Point regarding food hygiene, (l) Develop and implement an electronic system as needed for effective delivery of services provided by the Department, and (m) Perform other functions as prescribed. 27.

Food Laboratory: (1) The Government of Nepal shall establish food laboratories and reference laboratories for research, testing, and analysis related to the hygiene and quality of foodstuffs. (2) Provincial Governments and Local Levels may establish and operate food laboratories in their respective areas. (3) For the establishment and operation of a food laboratory, the following minimum standards must be met:- (a)

Arrangement of necessary physical infrastructure and skilled manpower for operating the food laboratory, (b) Assurance of continuous availability of necessary equipment and facilities to provide food laboratory services, (c) Implementation of a good food laboratory practice system for quality assurance of analysis services provided by the food laboratory, (d) Assurance of validation of analysis methods necessary for providing analysis services, (e) Preparation of a food laboratory manual and standard operating procedures, (f) Assurance of the use of calibrated equipment and glassware, (g) Arrangement for the use of laboratory-grade chemicals and reagents and their appropriate storage and management, (h) Establishment of a proper management system for chemical and biological waste generated from the food laboratory, (i) Proper arrangement for the safety of food laboratory employees in case of potential accidents and emergencies, (j) Maintenance of traceability of analysis reports, and (k) Implementation of a laboratory records management system. (4) The Department may register private sector food laboratories that meet the standards pursuant to sub-section (3) to perform food analysis related work. Chapter-7 Monitoring and Inspection 28. Food Inspection Officer: (1) The Department may designate an employee working in the Department or Office who has completed at least a Bachelor's level in Food Science or Food Technology and received basic training related to food monitoring and inspection, or who has completed a Certificate level in Science or Lab Technology or Food Technology and received at least six months of training related to food testing or inspection, as a Food Inspection Officer to carry out monitoring and inspection related to foodstuffs. (2) Notwithstanding anything contained in sub-section (1), nothing shall prevent the Department from designating an employee working as a Food Inspector at the time of commencement of this Act as a Food Inspection Officer. 29.

Functions, Duties, and Powers of Food Inspection Officer: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of a Food Inspection Officer shall be as follows:- (a) Regularly monitor and inspect whether the conditions or provisions under this Act or the regulations made under this Act are being complied with in the production, processing, storage, import, or sale and distribution of foodstuffs, (b) If there is suspicion or if information is received through any means that anyone is producing, processing, storing, importing, or selling or distributing foodstuffs contrary to this Act, immediately conduct monitoring, inspection, and inquiry, or collect samples of such foodstuffs, (c) Send samples collected pursuant to clause (b) to the Public Food Analyst for testing and analysis, (d) Request necessary details or information from the food business operator or other concerned persons during monitoring, inspection, and inquiry, (e) If it is found that anyone is producing, processing, storing, selling, distributing, or operating a business in foodstuffs contrary to this Act, take samples of such foodstuffs and prohibit their production, processing, storage, or sale and distribution for a specified period in the presence of the Chairperson, member of the concerned ward of the Local Level, or a representative of the local administration, and (f) Perform other functions as prescribed. (2) If a Food Inspection Officer imposes a prohibition pursuant to clause (e) of sub-section (1), a report stating the reasons for such prohibition shall be prepared and sent to the concerned Office and the Director General within three days. 30. Conducting Inquiry: (1) If widespread damage has been or is likely to be caused to the general public because someone has engaged in a food business or any food-related activity in a manner contrary to food hygiene, quality, or the food hygiene management system, and if it is deemed necessary to conduct a high-level inquiry into such matter, the Department or the Ministry may conduct or cause an inquiry to be conducted. (2) In relation to conducting or causing an inquiry pursuant to sub-section (1), the Department or the Ministry may form an inquiry committee with a maximum of five members, including representatives of experts in the relevant subject matter, the concerned Ministry or Office of the affected Province, and the concerned Division or Office of the Local Level. (3) The inquiry committee formed pursuant to sub-section (2) shall conduct an inquiry and

submit a report to the Department or Ministry that formed the committee. If it appears necessary to proceed with further action based on such report, the Department or Ministry shall forward the report along with the necessary action to the concerned body in writing.

31. Surprise Inspection: (1) The Department, Office, or Food Inspection Officer may conduct or cause a surprise inspection regarding the hygiene and quality of foodstuffs being sold, distributed, or kept for sale by a food business operator or service provider. (2) The officer conducting the surprise inspection pursuant to sub-section (1) shall submit a report to the Department or Office within twenty (?) Conduct of the food analyst, food analysis procedure, format of the report, and management of samples. Chapter-8 Offences and Penalties 40. Deemed to have committed an offence: If any person commits or causes to commit any of the following acts, he/she shall be deemed to have committed an offence under this Act: (a) operating a food business without obtaining a license pursuant to Section 9, (b) carrying out a food business contrary to Sub-section (4) of Section 11, (c) importing food articles without obtaining approval or an entry permit prior to import pursuant to Section 13, (d) producing, processing, exporting, importing, storing, transporting, or selling or distributing, or placing on sale or distribution, adulterated food articles contrary to Clauses (a), (b), (e), (f), or (g) of Section 15, (e) producing, processing, exporting, importing, storing, transporting, or selling or distributing, or placing on sale or distribution, adulterated food articles contrary to Clause (c) or (d) of Section 15, (f) producing, processing, exporting, importing, storing, transporting, or selling or distributing, or placing on sale or distribution, substandard food articles contrary to Section 16, (g) producing, processing, exporting, importing, storing, transporting, or selling or distributing, or placing on sale or distribution, food articles by cheating or deceiving contrary to Section 17, (h) using food additives or food processing aids in food articles contrary to Section 18, (i) selling or distributing food articles without affixing a label or by labeling them contrary to Section 19, (j) failing to fulfill any obligation to be fulfilled by a producer, processor and packager, importer, transporter, storer, seller, or service provider, respectively, contrary to Section 20, 21, 22, 23, 24, or 25, or doing any act in violation of such obligation, (k) selling or distributing any food article removed or prohibited from sale or distribution pursuant to Section 33, without having such food article released, (l) failing to comply with an order given pursuant to Section 35, (m) selling or distributing food articles that have been requested to be returned or ordered to be returned, contrary to Sub-section (4) of Section 38, or (n) doing any other act contrary to this Act. 41.

Power to impose immediate fine: (1) If any person obstructs or impedes the work of monitoring, inspection, inquiry, surprise inspection, or collection of food samples under this Act, the officer conducting such monitoring, inspection, inquiry, surprise inspection, or collection of food samples may impose an immediate fine of up to twenty thousand rupees. (2) The officer imposing the fine under Sub-section (1) shall make public the information regarding such fine. (3) If the person does not pay or deposit the fine within seven days from the date of the decision to impose an immediate fine under Sub-section (1), the officer who imposed such fine may take the following action against that person: (a) seal and keep such food articles until the fine amount is paid, or (b) impound other articles produced, processed, transported, stored, sold, or distributed by the producer, processor, importer, transporter, storer, seller, or service provider of such food articles until the fine amount is paid. (4) If any person is dissatisfied with the decision to impose a fine under this Section, an application for review may be submitted to the Director General within seven days. (5) The Director General shall, upon receiving an application under Sub-section (4), make necessary inquiry and decide on the matter within twenty-one days. (6) When submitting an application for review, fifty percent of the fine imposed by the officer imposing the fine must be deposited as cash security. (7) The decision made by the Director General upon an application under Sub-section (4) shall be final. (8) Other procedures to be followed regarding the imposition of an immediate fine shall be as prescribed. 42.

Punishment: (1) If any person commits the following offences, he/she shall be punished as follows: (a) for an offence under Clause (a), (b), (c), (h), or (n) of Section 40, a fine of up to fifty thousand rupees, (b) for an offence under Clause (d) of Section 40, imprisonment for up to five years or a fine of up to five hundred thousand rupees, or both, (c) for an offence under Clause (e) of Section 40, imprisonment for up to one year or a fine of up to four hundred thousand rupees, or both, (d) for an offence under Clause (f), (g), or (h) of Section 40, imprisonment for up to six months or a fine of up to three hundred thousand rupees, or both, (e) for an offence under Clause (i) of Section 40, a fine of up to one hundred thousand rupees, and (f) for an offence under Clause (k), (l), or (m) of Section 40, a fine of up to three hundred thousand rupees. (2) Any person who abets or acts as an accomplice in committing an offence under this Act shall be liable to half the punishment prescribed for the principal offender. (3) If a person who has been punished for an offence under this Act commits another offence under this Act again, such person shall be liable to double the punishment prescribed under this Act for that offence. 43. **Criminal liability of an organization:** If a firm, company, or organization commits an act deemed an offence under this Act, the person who committed or caused such act shall be held responsible, and if such person cannot be identified, in the case of a firm, the concerned owner or partners, and in the case of a company or organization, the director, managing director, general manager, or the person who committed or caused such act, and if such person also cannot be identified, the chief executive of such organization shall bear the criminal liability. 44. **Awarding compensation:** If any person causes harm or loss to any person by committing an offence under this Act, the adjudicating officer shall award reasonable compensation to the victim from the offender for the actual harm or loss incurred. 45.

Right to lodge a complaint: (1) Any person who receives information about any act or activity contrary to this Act or the rules made under this Act may lodge a complaint with the Department or office in writing, orally, or through electronic means, along with the information or evidence in his/her possession. (2) If the person lodging a complaint under Sub-section (1) wishes to keep his/her name confidential, such person's name shall be kept confidential. (3) The procedure relating to complaints shall be as prescribed. 46. **Investigation and filing of cases:** (1) Investigation of cases relating to offences punishable under this Act shall be conducted by the concerned Food Inspection Officer. (2) The Food Inspection Officer investigating a case under Sub-section (1) may exercise the powers available to an investigating officer under this Act or prevailing law. (3) After completing the investigation and inquiry work under Sub-section (1), the Food Inspection Officer shall submit the matter to the concerned Government Attorney for a decision on whether to file a case or not, and if the Government Attorney decides to file a case, the Food Inspection Officer shall file the case before the adjudicating officer. 47. **Adjudicating officer:** The authority to hear the following cases punishable under this Act shall vest in the following officers: (a) the Chief District Officer shall have the authority to initiate proceedings and adjudicate cases relating to offences punishable under Clauses (a), (d), (e), and (f) of Section 42, and (b) the District Court shall have the authority to initiate proceedings and adjudicate cases relating to offences punishable under Clauses (b) and (c) of Section 42. Chapter-9 Miscellaneous 48. **Management to be done:** A food business operator shall himself/herself manage the waste discharged by him/her. 49. **Development of integrated electronic system:** The Ministry may develop an integrated electronic system for providing recommendation letters, licenses, or approvals under this Act, and for the regulation, management, and facilitation of food articles. 50. **Power to form a National Codex Committee:** (1) The Government of Nepal may form a National Codex Committee with the Secretary of the Ministry as the Chairperson and such number of members as necessary. (2) The functions, duties, and procedures relating to meetings of the National Codex Committee shall be as determined by the Government of Nepal at the time of forming such Committee. 51.

Delegation of powers: The Department may, as required, delegate some of the powers vested in it under this

Act or the rules made under this Act to any subordinate officer or office. Provided that the power under Sub-section (5) of Section 41 shall not be delegated. 52. Government of Nepal to be the plaintiff: Cases involving offences under this Act shall be filed with the Government of Nepal as the plaintiff, and such cases shall be deemed to be included in Schedule-2 of the National Criminal Procedure Code, 2074. 53. Application of summary procedure: While adjudicating and disposing of cases filed under this Act, other than cases punishable under Clauses (b) and (c) of Section 42, the procedure under the Summary Procedure Act, 2028 shall be followed. 54. Obligation to provide assistance: (1) If the Department or office requests assistance from the local administration and police for implementing this Act, the concerned local administration and police shall provide assistance. (2) During the conduct of inquiry, monitoring, inspection, or sample collection under this Act, it shall be the duty of all concerned to provide necessary assistance to the officer involved in such work. 55. No bar to prosecution under prevailing law: If an act that constitutes an offence under this Act also constitutes an offence under any other prevailing law, this Act shall not be deemed to bar prosecution under such law. 56. Matters to be governed by this Act: Matters expressly provided for in this Act shall be governed by this Act, and other matters shall be governed by prevailing law. 57.

Power to make rules: (1) The Government of Nepal may make necessary rules for the implementation of this Act. (2) Without prejudice to the generality of the power conferred by Sub-section (1), the Government of Nepal may make rules on the following matters relating to food hygiene and quality: (a) matters relating to recommendations, licenses, renewal procedures, formats, and fees for the establishment of food industries, (b) matters relating to the hygiene and quality of food articles, and the use and quantity of food additives and processing aids, (c) matters relating to the production, sale and distribution, impounding, and destruction of food articles, (d) matters relating to packaging and labeling, (e) matters relating to setting standards for the transportation and storage of food articles, and arranging for humidity and temperature during storage, (f) matters relating to contaminants, toxic substances, and their residues, (g) matters relating to standards to be maintained when establishing a food laboratory, its listing procedure, and fees for sample testing and analysis, (h) matters relating to health nutrition, nutraceuticals, and dietary supplements, and food fortification, (i) matters relating to granting entry permits for importing food articles, (j) matters relating to food monitoring and inspection, (k) matters relating to organic food articles, (l) matters relating to alcoholic beverages, (m) matters relating to food safety system audits, (n) procedures for collecting samples for testing food articles, and (o) matters relating to advertising and health and nutritional claims. 58. Power to issue directives: The Ministry may, subject to this Act or the rules made under this Act, issue necessary directives. 59. Evaluation of Act implementation: The Ministry shall evaluate the implementation of this Act within one year after the completion of five years from the commencement of this Act, and thereafter within one year after the completion of every five years, and a report thereof shall be submitted to the relevant committee of both Houses of the Federal Parliament. 60. Repeal and saving: (1) The Food Act, 2023 is hereby repealed. (2) All acts and proceedings done under the Food Act, 2023 shall be deemed to have been done under this Act. (3) Cases filed before the adjudicating officer under the Food Act, 2023 and pending adjudication or awaiting decision, and applications relating thereto, shall, after the commencement of this Act, be transferred to the adjudicating officer under this Act.